

26STCV04213 26STCV04213

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-07-27

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C414%2C07%2F27%2F2026

Source SHA-256: 57e7ca3fcbd5655400e3d714e6fa26e55599e01e07e1b01344f23670c6ca73d9

Case Number: 26STCV04213 Hearing Date: July 27, 2026 Dept: 414

26STCV04213

The Evergreen Advantage, LLC v. Nesterenko, et al.

Monday,

July 27, 2026

[TENTATIVE] ORDER DENYING REQUEST FOR COURT JUDGMENT

The

complaint alleges Defendants personally guaranteed a commercial loan extended to non-party Noho 10, LLC. The note was secured by a Deed of Trust in real property. Defendants defaulted on the note, and Plaintiff foreclosed on the real property. A purchaser paid \$2,600,000.01, leaving a balance due of \$2,252,640.59. The complaint alleges that Defendants waived defenses under the anti-deficiency statutes and waived the right to require the lender to seek payment for indebtedness from the borrower. (Complaint, ¶¶ 11-14; Code Civ. Proc., § 726; Code Civ. Proc., § 580b.)

The

clerk entered default against Artur Nesterenko only on May 6, 2026. Defendant German Nesterenko filed an Answer on April 10, 2026, and is represented by counsel. Plaintiff seeks a separate judgment against Artur Nesterenko only.

In an

action against several Defendants, the Court has discretion to render judgment

against one or more of them, and leave the action to proceed against others, "whenever a several judgment is proper." (Code Civ. Proc., § 579.) A request for court judgment must "dismiss all parties against whom judgment is not sought or [submit] an application for separate judgment against specified parties under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment." (CA Rules of Court, Rule 3.1800 (7).)

No

default judgment can be taken where several defendants are sued on a joint liability, and one of them answers asserting defenses which would exonerate the defaulting defendant from such liability. (Mirabile v. Smith (1953) 119 Cal.App.2d 685, 689 ["The judgment sought to be obtained in the present action is a joint, and not a several judgment, predicated upon a claimed partnership or joint venture liability. In the instant action, if the defense presented by the appearing defendants is sustained, no judgment could or should be entered against this defaulting defendant."].)

Here,

both Defendants are alleged to be jointly liable as personal guarantors of the loan. Thus, any defenses raised by the answering defendant if sustained, inures to the defaulting party's benefit. Absent any authority to support a separate judgment against one of two obligors, the request is premature.

Accordingly,

Plaintiff's request for a separate court judgment is DENIED.